

ONTARIO

SUPERIOR COURT OF JUSTICE

B E T W E E N:

MARLENE COLE and MAURICE COLE

Plaintiffs

- and -

THE CORPORATION OF THE TOWN OF
DEEP RIVER

Defendant

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)
) Henry J. Bradley, Q.C., and Ian R. Stauffer,
) for the Plaintiffs
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) Ben Marcus, Q.C., for the Defendant
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) **HEARD:** November 18, 19, 20, 21 and
) December 9, 10 and 11, 2002

REASONS FOR DECISION

Power J.

Overview:

[1] The Plaintiff, Marlene Cole, seeks an award of damages to compensate her for injuries she suffered on March 23, 1995, when she slipped and fell while walking on or near a concrete ramp that extended from the edge of a sidewalk to Ridge Road in the Town of Deep River. Maurice Cole, the husband of Marlene, seeks an award of damages pursuant to the provisions of the *Family Law Act*, R.S.O. 1990, c. F-3.

[2] The Plaintiffs allege that the Defendant failed to meet the statutory duty imposed on it to ensure that the sidewalk and/or ramp were free of sand or other debris and, as well, that the

Town was negligent in allowing the ramp to be constructed with a slope that was too steep especially when covered with sand. In particular, the Plaintiffs allege that Mrs. Cole's slip and fall on March 23, 1995 was "a result of sand accumulated from the winter season on the said ramp which caused it to be very slippery with the result that she suffered painful and serious injuries".

[3] For the reasons that follow hereafter, this action must be dismissed.

[4] The parties are in agreement that the sidewalk and ramp are part of the highway or street and are, therefore, subject to the provisions of the *Municipal Act* R.S.O. 1990, c. M-45.

[5] The relevant section of the *Municipal Act*, s. 284 (1), provides as follows:

284(1) Every highway and every bridge shall be kept in repair by the Corporation the council of which has jurisdiction over it or upon which the duty of repairing it is imposed by this Act and, in case of default, the Corporation, subject to the *Negligence Act*, is liable for any damages sustained by any person by reason of such default.

[6] The Act defines "highway" as follows:

"Highway" means a common and public highway, and includes a street and a bridge forming part of a highway or on, over or across which a highway passes.

"Sidewalks" are mentioned in subsections (4) and (6). Subsection (4) provides that "except in case of gross negligence, a corporation is not liable for a personal injury caused by snow or ice upon a "sidewalk". Subsection (6) is a notice provision. This is not a snow or ice case.

[7] I indicated to counsel that, given the definition of "highway" and the specific reference to "sidewalks" in subsection (4), I initially had a concern whether s. 284 applied to the sidewalk or ramp in question. Counsel, however, were, and are, in agreement that s. 284 does apply. Indeed, it has been judicially determined, apparently many times, that a "highway" includes sidewalks – (See, for instance, *Larson v. Thunder Bay (City)*, [1999] O.J. No. 96 (Gen. Div.)). In my opinion, a ramp such as the one here in question, is part of the sidewalk. My reference to a "ramp" from time to time in these reasons should not be interpreted to mean that I am treating the sidewalk and the ramp as separate entities for legal purposes.

[8] The Defendant's position is that the ramp was properly constructed having regard to its intended use in a high traffic area and, as well, it denies any failure to keep the ramp in a proper state of repair. The Defendant further alleges that Mrs. Cole was entirely, or, in the alternative, substantially responsible for the slip and fall. It submits, as well, that Mrs. Cole's previous medical condition affected her ability to walk properly and was a contributing factor to her fall.

[9] During the trial, both liability and damages were in issue. With respect to the claim for damages, the Defendant alleges that Mrs. Cole suffered from a number of pre-existing physical and other problems predating the accident.

The Parties:

[10] The Plaintiff, Mrs. Cole, is sixty-three (63) years of age – she was fifty-six (56) at the time of the accident. The Plaintiffs have been married for forty-four (44) years and have three adult children and five grandchildren. Mrs. Cole was not gainfully employed outside the home although she did, prior to the accident, conduct a part-time sewing business. No loss of income claim was pursued at trial. Mr. Cole is a retired teacher. He is now sixty-seven (67) years of age. He retired in 1990.

[11] Prior to the accident, Mrs. Cole babysat some of her grandchildren on a regular basis and actively played with all of her grandchildren – i.e. she would play ball, badminton and other games with them. This included playful chasing. There is a dispute between the parties concerning just how active a lifestyle Mrs. Cole led prior to the accident. She made a claim for loss of consortium.

[12] Prior to the accident, Mrs. Cole looked after the majority of the housekeeping chores. Mr. Cole suffered a heart attack when he was forty-eight (48) years old and has had heart surgery since then.

[13] The evidence substantiates that Mr. and Mrs. Cole enjoyed a good marital relationship before the accident and that, indeed, this good relationship continues. Mr. Cole described his wife as being a person who kept busy, was always in good spirits, was active, was bubbly, and was generally in good health. As aforesaid, however, there is an issue about the condition of her pre-accident health. Indeed, the evidence shows that Mrs. Cole had suffered from depression, sometimes severe, for many years prior to the accident and the evidence also shows that she has encountered several physical problems over the years.

[14] It is clear from all of the evidence that she suffered numerous problems with respect to her shoulders, neck, back, legs and ankles. Ms. Booth, her daughter, recalled that Mrs. Cole broke her ankle when pregnant with Ms. Booth's sister in the 1960s and that Mrs. Cole "had a weak ankle – she'd go over on it". Mr. Cole, in his testimony, confirmed that she suffered from low back pain since the 1960s. Considerable time was taken up during the trial with regard to Mrs. Cole's medical history.

[15] Since the parties are generally in agreement with respect to the assessment of the general damages, I need not embark on a more detailed analysis of this evidence. Mr. Marcus, counsel for the Defendant, however, submits that the medical history is also relevant to the question of liability, i.e. responsibility for the accident and/or contributory negligence.

[16] The Defendant, Deep River is a municipal corporation having a population of approximately four thousand (4000) people.

Additional Relevant Facts:

[17] The weather conditions on March 23, 1995 were wonderful for that time of the year. According to Mrs. Cole, it was an “absolutely beautiful” day. Her evidence was that the sun was shining and that it was warm. While there were some small pockets of snow in some areas of Deep River, there was no snow or ice in the area of the accident.

[18] Despite the fact that on the date of the fall there was no relevant winter snow accumulation, it is, nevertheless, not unusual to have snowfalls after March 23rd in Deep River.

[19] In the early morning of March 23rd, Mrs. Cole and her husband went for a walk of about forty-five (45) minutes duration. Prior to proceeding alone to downtown Deep River on foot, Mrs. Cole ate her breakfast and showered. Her intention was to attend a Credit Union for the purpose of making a deposit of some theatre proceeds. The proceeds were carried by her in a plastic bag. The evidence did not reveal the type of footwear worn by Mrs. Cole on March 23rd. The Cole home is not far from downtown Deep River. Mrs. Cole described the walk between her house and the ramp of being one of approximately five minutes duration.

[20] At this point, it is appropriate to describe the sidewalk and ramp – i.e. the scene of the accident. In 1994, the Defendant town constructed a new library near the area where the ramp is now located. As part of this project the Defendant changed the alignment of the roadway near the library. A new sidewalk was constructed running parallel to Ridge Road. The ramp was constructed at or about the same time as an afterthought - i.e. it was not part of the originally contracted-out work. A new, and more elaborate, intersection close to the ramps was part of the project. However, pedestrians did not appear to be making full use of it (i.e. the intersection). They continued to cross Ridge Road by using the new ramp where a dirt path had been in use for many years. Michael Richardson, the Town superintendent at the time, decided that, because the old dirt path was still being used, a concrete ramp should be constructed. He considered the ramp, as do I, as part of the sidewalk. No specifications were drawn up or used in the construction of the ramp. Mr. Richardson testified that the ramp was constructed in order to accommodate pedestrians who wished to cross Ridge Road at that point. According to him, the ramp was put there “to prevent people from having to climb snow banks in the winter”. The ramp was built under his supervision. He was designated in the applicable works authorizing by-law as the “engineer”.

[21] Mr. Richardson recalled that there was formerly an asphalt ramp at that particular site; however, the evidence of all of the witnesses taken as a whole does not substantiate his recollection. Whether there was simply a path in the earth/grass or an asphalt ramp at that location makes no difference to my decision. Mr. Richardson never measured the slope of the new concrete ramp. He noted that this was a heavy pedestrian traffic area. He refused to agree with questions put to him during his cross-examination that the ramp was steep – i.e. that it had a steep slope. He did, however, agree that the ramp was sloped. I do not accept the characterization of the ramp slope as “steep”.

[22] Mr. Richardson gave verbal on-site instructions regarding its construction. He instructed the contractor to build the ramp to a certain width and he told the contractor where to place the ramp and that it should end flush with the asphalt road surface. The former pathway ended at the elevated curb along the side of Ridge Road. These instructions involved removing the curb in that area. Mr. Richardson also agreed that no “written guidelines” were followed in the construction of the ramp.

[23] The sidewalk and the ramp were, as aforesaid, constructed of concrete. The concrete was brushed and, therefore, the surface was not a smooth one. The concrete, because it was fresh, was, at the time of the accident, quite light, or white, in colour.

[24] A Forensic Engineering report prepared for the Defendant describes the ramp as follows: (the plaintiffs’ expert accepted this information) –

- the ramp extends at a right angle from the sidewalk to the road;
- the ramp measures 5 feet wide by 5.42 feet long;
- its surface is brushed concrete;
- the ramp slope was measured to be 7 in. vertical to 48 in. horizontal, that is, a slope equal to 0.14.

[25] The side, or edge, of the road surface and the sidewalk on either side of the ramp are separated by a strip of grass which slopes from the sidewalk to the curb. The strip of grass is approximately five feet wide. The path where the ramp now sits had a tendency to become muddy from time to time, thus sometimes making it difficult to push or pull a wheeled cart, buggy or other wheeled device across it.

[26] No pictures were taken of the scene of the accident at or about the time of the accident nor were any samples of sand collected in the area of the accident at or immediately after the time of the accident.

[27] The Plaintiff, Mrs. Cole, in cross-examination, was asked why she used the ramp on March 23rd. Her answer was “because it was a nice sunny day – it was warm – there was no snow – the roads were dry, except for the ramp that had sand on it – the roads had been swept the previous day”.

[28] In her examination in chief Mrs. Cole testified that she was walking along the sidewalk and when she approached the ramp she looked both ways and noticed that there were no cars approaching. She said that she went down the ramp and that the next thing she knew she was on the ground. She said: “I slipped on the sand that was on the ramp. It all happened too quickly – I recall falling, hearing a crack, and hitting my head and then suffering excruciating pain”. She described the “crack” as being “like something had snapped”. She estimated that the time of the fall was approximately 10:10 a.m.

[29] Her evidence was that there was more sand on the ramp on the day of the accident than was on it the day before. There was no other convincing or probable evidence to support this

testimony. I find as a fact that if there was sand somehow deposited on the ramp after she observed it the day before, the additional sand was of no consequence. Indeed, if there was additional sand, and she saw it, she should have taken appropriate precautions. I conclude that it was of no consequence because I find that Mrs. Cole did not carefully look at the ramp and what was on it prior to stepping or walking on to it or, put another way, she took no precautions to ensure that she could safely walk on, or over it. The ramp and anything on it were in plain view – there was no concealment whatsoever. She accepted the accuracy of the following questions and answers from her examination for discovery transcript:

229 Q. Now, I think you said that you indicated that there was a heavy concentration of sand toward the road?

A. Yes, sir.

230 Q. My question to you is, was there also sand on the west of the ramp on that date?

A. Yes.

231 Q. And did you, having - - I take it you made this notation before you fell?

A. I assume so.

232 Q. Yes, all right.
And you indicated on the day before that you walked around the sand; did you take any evasive action on the day of the accident as you had the day previous?

A. I just walked. The sand was all over. ...

[30] The following additional questions and answers from her examination for discovery were also accepted as accurate by her while she was giving her evidence at trial:

254 Q. Well, if you understood - - if you appreciated this danger, (slipping) why did you use the ramp on the day of the accident instead of going on the road?

A. Because it was a nice sunny day, it was warn, there was no snow, the roads were dry, except for the ramp that had sand on it, the roads had been swept the previous day. ...

[31] Mrs. Cole also testified at trial that she moved directly from the sidewalk to the ramp and that she was watching where she was going. She was asked whether she looked at the ramp

before she stepped on it. Her response was - “it was a long time ago – I can’t remember – I don’t remember looking at the ramp”. As aforesaid, I find that she was not watching where she was going when she turned on to the ramp. She was then asked whether she recalled if there was sand on it and responded with “I don’t know”. I pause to note that the burden of proving a breach of the statutory duty of repair and/or negligence is on Mrs. Cole.

[32] In cross-examination she was again referred to her examination for discovery transcript, the accuracy of which she accepted, where she said that she would sometimes cut across the grass area between the sidewalk and the road rather than go down the ramp. She said that she would, however, not do this in the winter but that “I’d walk on the road – I found it (the ramp) slippery – I didn’t want to fall”. Therefore, her practice was to avoid walking on the sidewalks in the winter “if I could avoid it”. She then added that, “even when the snow was gone, I still used the road – I can only say I used it (the ramp) not very often – If I used the ramp it would be going up rather than down”. She testified that Ridge Road had a fair amount of traffic on it but that its surface was well maintained.

[33] There is a great deal of doubt in my mind concerning the exact spot where Mrs. Cole slipped or fell. After hearing her evidence, my understanding was that she slipped on the sand on the ramp itself and came to rest on the ramp near where it intersected with Ridge Road. However, this is contradicted by the evidence of the ambulance driver, Peter Tozer. Mr. Tozer gave evidence on behalf of the Plaintiffs. At the time he was a paramedic and was manager of the ambulance service out of Deep River and District Hospital. He was called to the scene of the accident “slightly after 10 o’clock”. He identified the report he completed on the day of the accident and noted the following entry on the report:

Pt. (patient) fell on sidewalk onto gravel. Landed left hip, heard snap right femur
...

[34] His evidence was that, when he arrived at the scene, Mrs. Cole was lying on the sidewalk. In other words, according to him, she was not lying on the ramp but, rather, on the sidewalk perpendicular to the ramp. There is no evidence that Mrs. Cole was moved prior to his arrival. However, in cross-examination he testified that she had fallen on the ramp. He then said:

she was...ok...the sidewalk that runs along that area, I’m not sure if it is still the same sidewalk because there have been renovations, but the sidewalk that ran along there as I recall, came around the curve to where the sidewalk had been cut out and the ramp had been included as part of the sidewalk. In other words, the ramp...the sidewalk had come and had been lowered from the centerline of the sidewalk, parallel to the line of travel to the road edge and Mrs. Cole was lying on that part of the sidewalk which was sloped.

[35] Confused with this response, Mr. Marcus, counsel for the Defendant, provided Mr. Tozer with one of the photographs filed as an exhibit, and asked him to mark the spot where he found Mrs. Cole lying on the ground. Mr. Tozer later said: “to my recollection, she was parallel to the

direction of travel of the sidewalk”. He drew a “stick person” on the photograph placing Mrs. Cole’s entire body on the sidewalk lying parallel to the road. In other words, no part of her body, according to his drawing, was shown as being on the ramp. Later he was asked whether he personally had any trouble with traction that morning. His answer was: “I was...if you are asking me if I slipped the answer is not that I recall. If I was concerned about slipping for myself and my partner and the bystanders the answer is yes”.

[36] Mrs. Cole was very familiar with the ramp. Indeed, it is important to the result in this action to make specific reference to her knowledge. She testified that while she could not pinpoint the exact date, sometime during the winter of 1994-95, prior to the accident, she once had difficulty using the ramp. She said: “I slipped, yes, on the snow”.

[37] Mrs. Cole’s evidence of exactly what transpired on the day before the accident was contradictory. She testified that she had probably used the ramp on March 22nd (the day preceding the fall) and that it had some sand on it that day, but that it was dry and free from any ice or snow. Later in her testimony she said that she was wrong. She said that, on that date, she deliberately walked around the ramp because there was sand on it “so that I wouldn’t slip”. She also said that on March 22nd she was in a car driving downtown and “probably looked out the window” (i.e. at the ramp). She then added that this could have been a day earlier.

[38] In any event, her evidence was that on March 22nd the sand was: “across the sidewalk, the ramped sidewalk”. She said: “it was on the side, on the ramp, spread out”. She could not recall whether it was spread evenly or in “clumps”.

[39] As previously discussed, it was her evidence that the ramp had more sand on it on March 23rd than on March 22nd. She said that it had a lot of sand on it – at the foot – “down at the bottom where I slipped”. The Plaintiffs conceded that they were not in possession of any direct evidence that would show that the municipality had placed more sand on the ramp on or after March 22nd and prior to the time of the accident.

[40] Mrs. Cole further testified that on March 23rd there was a heavy concentration of sand “towards the road – and sand on the west of the ramp”. Her evidence was that she saw the sand before she fell but took no evasive action to walk around the ramp on March 23rd. She said: “I just walked, the sand was all over”. I note here that I have already concluded that she was not keeping a careful lookout.

[41] She also testified that in the fall of 1994, on seeing the ramp, she appreciated that it was a troublesome one because of difficulties that, apparently, had been encountered pushing a stroller down the ramp. She could not recall saying anything about this to anyone prior to the accident. She also testified that she saw a mother grabbing her child who was on a tricycle about to go down the ramp.

[42] Mrs. Cole was aware that the municipality was in the habit of placing sand on the sidewalk and the ramp to prevent people from slipping on the ice and snow.

[43] The parties are in agreement that, on the day in question, there were no obstructions to visibility at or near the scene of the accident.

[44] The Town superintendent, testified that because there had been a warm spell, the Township was pretty certain there would be no more freezing or snow that year and, therefore, had commenced a road sweeping operation. Mr. Richardson examined the municipal records and found that the streets were swept with the municipality's street sweeper on March 20th, 22nd, 23rd and 24th. He described the sweeper as a specially designed machine which incorporated a rotating broom with a hopper to collect sand and water. In other words, when the sand is swept it goes into a hopper before it is dumped. However, he conceded that the machine can leave a sand residue. He also noted that this machine was not used on the sidewalks, as it was too big. He noted that the machine goes close to the curb and can scatter some sand outside the broom and hopper. However, he said: "but not a lot – the machine is pretty efficient in picking it (the sand) up". He testified that municipalities do not attempt to clean up all of the sand too soon at the end of winter, as it is better to leave some there to provide traction if required.

[45] There were no prior complaints to the Defendant from anyone with respect to sand or other debris on the sidewalk or ramp in the area of the accident. Similarly, there were no complaints made by anyone to the Defendant Town with respect to the manner in which the ramp was constructed (i.e. its slope). There is no evidence of any other person slipping or falling on the sidewalk or ramp before or after the March 23rd, 1995 incident. The only notification of any difficulty was the call from Mr. Tozer, the ambulance attendant.

[46] Mr. Tozer's evidence was that when he arrived at the scene of the accident the ambulance attendants encountered some difficulty "because the sidewalk area itself was covered with a considerable amount of aggregate". He said: "there was sand and the sand includes some small pebbles and they were fairly numerous. They were difficult to get around, they caused a bit of a problem with the traction on her boots (this comment was pure speculation) and certainly when we knelt on the sidewalk we had to brush them clear so we didn't end up with a pebble in the knee which is fairly painful". He then said that the roadway itself was fairly clear "but there was considerable amount from the edge of the road through up into the sidewalk. I guess it is not surprising...".

[47] Mr. Tozer's evidence was that he told Mr. Richardson that he, Mr. Tozer, was concerned about the situation where Mrs. Cole had slipped and that he was concerned about the amount of sand being on the sidewalks in the Town in general. He said: "I was just concerned that we would be having more people slipping. I think I was particularly concerned because it wasn't just fine sand it had some pebbly material in it which made it slippery. Sand normally isn't that slippery but this pebbly material was present where Mrs. Cole had fallen". I find that, despite the testimony from Mr. Tozer, there was nothing unusual about the type of sand used by the municipality and that Mr. Tozer's evidence concerning "pebbly materials" was an exaggeration. Obviously, there would be some grit in the sand that would make it uncomfortable to kneel on the ramp or sidewalk.

[48] A clean-up of the site took place after the accident although the evidence is somewhat vague on just who ordered the clean up and when it was carried out. Mr. Richardson testified that he visited the scene after the accident and noticed that his men (the Township workmen) had been there to sweep it up. He did not know how or when they had done that. He could only speculate that the sweeping was probably done after Mrs. Cole's fall because someone suggested that there was a risk. Mr. Richardson had no recollection of being advised by Mr. Tozer that he had noticed some small pebbles in the aggregate.

[49] Margaret Booth, the Plaintiffs' adult daughter, testified that on the night of the accident or during the following day, she observed a municipal work crew sweeping the sand off the ramp into shovels which they then emptied into a dump truck.

[50] Mr. Richardson testified that he had personally used the ramp about one hundred times and never had any difficulty on it. Similarly, Ms. Booth had encountered no difficulty traversing the ramp prior to the date of the accident. She had used it many times. However, she did not use it in the winter.

[51] Mr. Richardson, as Town superintendent, was responsible for road and sidewalk maintenance and inspection. His evidence was that the ramp was situated in a very central location and, therefore, received a lot of inspection. Work crews were frequently driving by the ramp and were walking on the ramp and sidewalk. He also traversed the sidewalk and ramp on numerous occasions. His evidence, which I accept, was that the roads and sidewalks were very well maintained and that, indeed, the Town ensured that there were two work crews active during the wintertime. Deep River's budget for road maintenance was larger than similar municipalities. It possessed a special machine for the clearing of sidewalks – it plowed and sanded at the same time. The sidewalks were salted or sanded, or a combination of both was applied, as conditions warranted.

[52] Mr. Richardson was in charge of purchasing the sand, which he did annually. The sand used by the Town was the same type of mixture employed by other municipalities. His evidence concerning the nature of the sand contradicts that of Mr. Tozer. As aforesaid, there was nothing unusual about the sand. Mr. Richardson's evidence was that the grit in the sand was "not too fine and not too large".

[53] Mr. Richardson was quite adamant in stating that in March 1995, the sand on the Deep River sidewalks was not considered to be a problem and he stressed that there were never any complaints about anybody slipping on the sand on the sidewalk or the ramp.

[54] Long after the accident, the Plaintiffs gathered up some sand or other aggregate from the area of the accident for use by his expert. Given the timing and the circumstances under which this was gathered up, it would be pure speculation on my part to try to equate it to the sand that was on the sidewalk and ramp on March 23, 1995.

The Injury to Mrs. Cole

[55] The crack or snap heard by Mrs. Cole when she fell was the result of a fracture to her right femur. It was described in the evidence as a serious comminuted intra-articular fracture of the lower third of her right femur.

[56] Dr. R. J. Feibel, an orthopedic surgeon at the Ottawa Hospital – General Campus, summed up Mrs. Cole’s injuries and treatment as follows:

Upon her admission to the Ottawa General Hospital on March 23rd x-rays were taken revealing a displaced intercondylar subcondylar fracture of the right femur. Mrs. Cole underwent open reduction and internal fixation of the right femoral shaft and intra-articular fracture.

[57] According to Dr. Feibel, a perfect positioning of the joint line fracture was obtained. The fracture was noted to extend into the knee joint in the area of the lateral portion of the medial femoral condyle. She was treated with a dynamic condylar screw. On March 28, 1995, she was returned to the Deep River Hospital where she stayed for approximately a month and participated in physiotherapy five days per week.

[58] She was discharged on crutches and was advised not to become involved in any weight bearing activities. She also used a wheelchair. Progress was painful and slow. Problems developed as a result of a non-union of the femoral shaft fracture. On August 4, 1995, Dr. Feibel proceeded with an iliac crest cancellous bone graft. Mrs. Cole was discharged on August 10th again to the Deep River Hospital. Once again she was discharged on crutches with instructions not to weight bear.

[59] Notwithstanding some slow improvement in her ability to walk, Dr. Feibel observed, in October of 1995, that the fracture lines were still visible which raised the risk of persistent non-union.

[60] On January 22, 1996, the internal fixation fractured at the upper end of the bone fracture site resulting in mal-alignment of the right lower extremity. The plate broke due to plate fatigue. Dr. Feibel, on January 25th, proceeded with the removal of the dynamic condylar screw implant and a placement of left iliac crest cancellous bone graft to the right midshaft femoral non-union and intramedullary nail fixation. No complications were encountered and Mrs. Cole was discharged and transferred to the Deep River Hospital on February 1, 1996 following which she again resumed physiotherapy.

[61] After the physiotherapy and her release from the Deep River Hospital Mrs. Cole was able to begin to walk with the use of crutches and then, a cane. Mrs. Cole testified that she was very upset emotionally by February 19, 1996. She described her experience as “horrendous”. However, by the summer of 1996, she was permitted to return to some of her old activities provided she was able to tolerate them.

[62] She again underwent surgery on January 31, 1997 at the Ottawa General Hospital. She had developed a small hernia in the right iliotibial band which caused her discomfort. The

locking screws were removed at the same time. By the late spring of 1997 she was permitted to return to gardening. However, she continued to incur pain.

[63] By August of 1998, Mrs. Cole was still encountering pain notwithstanding that the fracture had healed. The source of the pain was found to be caused by a screw at the lateral femoral condyle which was deeply seated and, as well, the upper portion of the rod that had been inserted was causing symptoms. On August 14, 1998, the internal fixation was removed.

[64] Mrs. Cole continued with her physiotherapy long after her discharge from the hospital.

[65] In his report of April 17, 2002, Dr. Feibel said:

...

By the 29th of October, 1998 she had an excellent walking gait. She also had full right hip range of motion and 0 to 130 degrees of right knee range of motion with no tenderness. The incision was well healed. At the time of her assessment the 23rd of November, 1998 there was slight inflammation along the suture margin and this was felt to be a possible reaction to the absorbable sutures. She was advised to discontinue her crutches after one week and that she may drive. Follow-up arrangements were made for her to be seen in Pembroke and she was seen on the 2nd day of March, 1999. She continued to have discomfort in the area of the right hip along the lateral or outer aspect of the right knee.

...

[66] In addition to the continuation of pain, Mrs. Cole experienced a grinding sensation in her right knee. It was determined that this was caused by a loss of joint cartilage along the inner right knee. X-rays revealed osteoarthritis of the right knee making her a candidate for a total right knee replacement. Dr. Feibel estimated that Mrs. Cole had a twenty percent whole-person impairment based on severe post-traumatic degenerative arthritis of the right knee and that she also had ongoing right hip and thigh symptoms secondary to her fracture which he estimated resulted in a further five percent whole-person impairment.

[67] Mrs. Cole has not yet decided to have further surgery. In a brief report of November 11, 2002, Dr. Feibel estimated that her symptoms will continue to deteriorate over the next few years and that she will probably have to elect to proceed with total knee replacement surgery within the next three to five years.

[68] She continues to use various painkillers as prescribed from time to time and uses a cane to assist her. She is unable to remain in any one position for any length of time and, once sitting, requires her right leg to be elevated and supported.

[69] Mrs. Cole's activities following her injury have been severely curtailed. Her former daily walks have been slowly reduced, if not eliminated. In wintertime she is very frightened when walking. She said: "I don't want to fall again". She goes up and down the staircases at home as

infrequently as possible and has to negotiate those, and all stairs, very delicately. She complained of post-accident pain in her right shoulder and said that on some days she cannot lift her arm over her head. She testified that her ability to do housework “has gone down”. The scars left from her surgeries bother her. She considers them to be unsightly and emotionally painful.

[70] Mrs. Cole participates in a fitness club where she performs light exercises. She has not skied or bowled since the accident. It seems that, in any event, skiing had been abandoned prior to the accident in favour of curling. She has basically given up on dancing. The Plaintiffs’ sex life has been greatly diminished as Mrs. Cole now finds it painful. She is not able to furnish the type of care to her husband that she would like to and previously did. Since he cannot shovel snow because of his heart condition she “struggles to do this”. Her grandchildren now help out with this chore and with the grass cutting. Mrs. Cole continues to garden but has difficulty kneeling and doing anything strenuous.

[71] According to Mr. Cole, it took Mrs. Cole approximately four years to resume walking and to again begin to live a somewhat normal life. He said, however, that her condition is still deteriorating because of her knee problems. Her active game playing with her grandchildren has come to an end.

[72] Mrs. Cole testified that when her knee is not bothering her, she walks with a normal gait. However, if she stays on her feet from any length of time her knee will bother her and she will favour it. She frequently uses a walking cane. She has not used a wheelchair since 1998.

[73] Mr. Cole now does some of the necessary housework that used to be performed by Mrs. Cole. Mr. and Mrs. Cole are not as socially active as they were before the accident – i.e. they have restricted their church involvement, their theatre involvement and dinner parties.

[74] Mrs. Cole has a very significant medical history and, as aforesaid, a great deal of time during the trial was devoted to this by the defence. The following is a list of some of the problems encountered by Mrs. Cole from the early 1960s – shoulder; left wrist; arm; hips; right ankle (both a break and sprains); depression and anxiety; headaches; neck; recurrent back problems, particularly in the lower back region; back spasms radiating into the legs with parasthesia; herniated discs; dizzy spells; acute lumbosacral sprain; sciatica; and others. It is also significant to note that a number of the pre-accident problems were also the results of falls. One of the more significant pre-accident injuries was the previously mentioned fall in the early 1960s when Mrs. Cole was pregnant with one of her children. She suffered a fairly serious ankle injury. Mr. Cole, and Ms. Booth, noted that Mrs. Cole had various difficulties after that including low back pain and balance problems. Ms. Booth said that her mother, as a result of the accident in the early 60s, had a weak ankle and “she’d go over on it”.

[75] Dr. Feibel agreed in cross-examination that it was possible that, given Mrs. Cole’s medical history, she fell because of a fracture that had resulted from her pre-existing medical condition. In other words, the suggestion was that Mrs. Cole fractured her leg and then fell. I

reject this theory as being too speculative. The evidence, taken in its entirety, warrants the conclusion that Mrs. Cole slipped on the sidewalk, or ramp, and fractured her leg when she landed on the concrete.

The Expert Testimony Concerning the Ramp

[76] Expert testimony was called at trial concerning the manner in which the ramp was designed and constructed and, as well, with respect to friction and slippage. Thomas R. W. Wood, BSc.P.Eng. testified on behalf of the Plaintiffs. In his reports' Introduction he said:

There can be no doubt that the primary purpose of the ramp is to facilitate the passage of disabled persons in wheelchairs.

[77] While it is a reasonable inference to conclude that wheelchair traffic was contemplated when the ramp was constructed, it was not constructed simply for that purpose but, rather, as a general use ramp. Mr. Wood noted, correctly, that ramps of this sort are not regulated by any Provincial or Federal design specification. Normally, their construction is covered by specifications written by the municipality for whom they are built. Although, as aforesaid, there is no applicable Provincial specification, there does exist what is known as an "Ontario Provincial Standard Drawing No. OPSD-303.04 entitled "sidewalk ramps". This is an advisory document only. It indicates that the maximum slope of a sidewalk ramp should be 1 in 12, or 5°. According to Mr. Wood, most municipalities follow this guideline.

[78] Based on measurements provided to him by Mr. Cole, Mr. Wood concluded that the slope of the ramp at the accident sight was approximately 1 in 6, or 9.5°. He examined the defence experts' report and concluded that they, the experts, measured the slope at 1 in 6.9, or 8°. According to Mr. Wood: "in either case, the measured slope is much greater than the generally accepted maximum slope for ramps intended for use by handicap people. In other words, the subject sidewalk ramp at Deep River does not conform to the norm, and cannot be regarded as safe for its intended purpose". Mr. Wood acknowledged that the aforesaid opinion could be irrelevant because Mrs. Cole was not a handicapped person when she fell. He said: "however, the Ontario Building Code cites 1 in 10, or 6°, as being the maximum safe slope for pedestrian ramps. He said that some other governmental authorities allow a maximum slope of 1 in 8, or 7°".

[79] Mr. Wood's report and evidence dealt with "Slip Resistance". Mr. Wood noted that, while there is no firm agreement on "Slip Resistance", three organizations of high repute have recognized a coefficient of static friction of 0.5 as the minimum safe value for pedestrian use. Mr. Wood noted that "coefficient of friction" and "Slip Resistance" may be considered as synonymous. He noted that the safe value of 0.5 refers to level surfaces and that slope has an adverse effect – i.e. it reduces the "Slip Resistance". He also noted that the accumulation of "grit" on a surface tends to decrease "Slip Resistance".

[80] Mr. Wood examined samples of aggregate (sand and grit) forwarded to him by Mr. and Mrs. Cole. As I said earlier, these samples were gathered long after the accident and, in my opinion, were very unreliable evidence of the conditions that existed on March 23, 1995.

[81] Claude Pilette, Ph.D., P.Eng., formerly of Walters Forensic Engineering, gave expert opinion evidence on behalf of the defendant. He had the advantage of personally attending at the site on a number of occasions. Various onsite tests were carried out. He stressed that it was relevant that the sidewalk and ramp surfaces were of brushed concrete because brushed concrete, obviously, provides traction. He quite properly conceded that slip friction is reduced by the slope in the ramp and by the presence of sand. As mentioned earlier, his investigation revealed that the ramp contained a slope of 7 inches over its length of 48 inches which translates to a 1 in 7 slope.

[82] His tests were performed in the presence of the Town superintendent, Mr. Richardson. Sand from the municipal stockpile was used in the tests. These tests were carried out with and without sand being present. Mr. Pilette testified that a review of research on human locomotion revealed that a static coefficient of friction ranging between 0.23 and 0.40 is sufficient to prevent slip and this range was used as the benchmark in his analysis. He concluded that the dry concrete ramp without sand had an effective static coefficient of friction in excess of what is needed to prevent slippage. I accept this conclusion.

[83] He also concluded that the dry concrete ramp with sand had an effective static coefficient of friction which, although less, was still sufficient to prevent slippage for all three sample sole materials employed in his tests. I find that this is a reasonable conclusion and I adopt it. Indeed, I accept the opinion expressed in his report (Exhibit 41) as follows:

Conclusions

Walters Forensic Engineering offers the following conclusions.

It is our opinion that;

- The existing concrete ramp, covered with sand, has an effective static coefficient of friction sufficient to prevent slippage.
- There was no significant difference in the static coefficient of friction among various thicknesses of sand – cover on the ramp.

[84] Messrs. Pilette and Wood were each asked to comment on the report of the other. Mr. Pilette commented on Mr. Wood's conclusion that the ramp was unsafe because the ramp angle of inclination exceeded 6° and the probability of slipping was exacerbated by the presence of loose grit on the ramp surface. Mr. Pilette testified that the Ontario Building Code requirements referred to by Mr. Wood were not applicable since the exterior ramp was not connected to an exit of a building. Therefore, it was not appropriate to adopt a recognized safe limit factor of 6°. He

also noted that the Wood report failed to recognize that loose grit would also exacerbate the probability of slippage on a leveled walkway and, therefore, the Wood conclusion was irrelevant.

[85] I further accept Mr. Pilette's statement in his second report (Exhibit 43) where he notes that Deep River is subject to episodes of freeze-and-thaw from mid-March to mid-April and that "therefore, it would be prudent to have abrasive material, such as sand, on exterior walkways to increase their slip-resistance under icy conditions". I accept the following extract from his second report:

Tables 1 and 2 of our report dated September 8, 1997, show that the static coefficient of friction of the ramp (dry, with sand) is in excess of 0.3. Under the expected environmental conditions at the time of the accident (i.e. late March), we are of the opinion that the surface of the ramp had sufficient slip-resistance to prevent slippage.

[86] Mr. Wood had some valid criticisms of the Walters Forensic Engineering Report. However, on balance, I prefer the evidence of Mr. Pilette (Walters) notwithstanding the vigorous and able submissions of Mr. Stauffer on behalf of the Plaintiffs.

[87] Notwithstanding that I qualified Messrs. Wood and Pilette as experts and allowed them to express opinions, I noted that much of what both experts had to say was common sense and was familiar to me from my own experience. I advised counsel that, with all due respect, much of the evidence which I expected them to give would probably not be of great assistance to the court. Still, the expert evidence was of some assistance in reaching my final conclusion that there is nothing negligent or inherently dangerous in the design or construction of the ramp in the context of its location and intended use.

[88] There are, and again this is not intended to be a criticism of the efforts of the experts, several relevant factors that must be considered in the determination of liability in this case that are not expressed, or fully developed, in the expert reports. These include the type of footwear used by Mrs. Cole; the condition of her footwear; her walking speed; the length of her strides; the abruptness, or lack thereof, of her turn on to the ramp; and how loose or impacted the sand was. Mr. Wood was advised by the Plaintiffs that the ramp was "covered with sand".

[89] Obviously, it does not automatically follow from the fact of the fall that the design of the ramp was a negligent one. In addition, the law does not require a municipality to provide slip free resistance surfaces. This is Canada – no such standards could ever be achieved given our harsh weather conditions.

Argument and Decision:

[90] Mr. Stauffer, in his final argument, submitted that the evidence supported a finding that there were numerous small pebbles allowed to accumulate on the ramp. In my opinion, the evidence does not give rise to such a finding. It establishes only that there was some sand on the ramp which cannot be accurately described as "numerous small pebbles". He also submitted that

there was no purpose in allowing the sand to remain there. Again, I disagree. As mentioned earlier in these reasons, there is a history of snow falling after March 23rd and temperature can frequently drop below zero after March 23rd. There was, therefore, good reason to leave the sand in place. Notwithstanding these facts, the evidence was that the Town had decided to clean up the streets and sidewalks and was in the process of doing so. There are no facts upon which I can conclude that the Town was negligent in not doing so before March 23rd.

[91] I also reject Mr. Stauffer's argument that additional sand was deposited on the ramp as a result of the road sweeping. The evidence of Mr. Richardson warrants a finding that this would not have been the case given the type of equipment that was used.

[92] Mr. Stauffer relies heavily on the evidence of Mr. Tozer with respect to the argument that the ramp was unsafe. However, it must be remembered that Mr. Tozer identified Mrs. Cole as having been lying on the sidewalk after she fell, rather than on the ramp itself. This suggests that she did not slip on the ramp but, rather, on the sidewalk. I have already commented on my assessment of Mr. Tozer's evidence concerning the sand and "pebbly" material. It is for the court, and not Mr. Tozer, to decide whether the ramp was unsafe. His evidence was not very helpful. I find that Mrs. Cole slipped and fell on the ramp and that she came to rest on the ramp and, perhaps, partially on the ramp and the sidewalk perpendicular to it.

[93] Mr. Stauffer relies heavily on the decision of McCartney J. in *Nuttal v. Thunder Bay (City)*, [2001] O.J. No. 545, a case in which a plaintiff slipped on a wet sidewalk on a hill during a rainy day. She fell while attempting to step over a patched portion of a sidewalk slab. The patch did not comply with the City's engineering standards. The court held that a 9.6% slope was a very steep slope for a sidewalk making it more dangerous to walk on. The finding that a 9.6% slope was a very steep one was distilled from expert evidence. I have no problem with the result reached in that case; however, I do not find it particularly helpful in determining the issues in this case given the differences in weather and the materials used to construct the respective sidewalks.

[94] Mr. Stauffer, as well, argued that the fact that there was no formal system for inspection in place is relevant. In my opinion, given that we are dealing with a fairly small municipality, the inspection system that was in place was a more than adequate one. The facts in evidence are that the ramp in question was seen and used on numerous occasions by the Town superintendent and the work crews.

[95] There is no serious dispute between the parties concerning the appropriate legal standard of care on the Defendant. Section 284 of the *Municipal Act*, in the circumstances of this case, requires a municipality to keep its streets, bridges, or sidewalks, (including sidewalk ramps) "in repair". In the event that it fails to meet its duty and where such failure is the cause of an injury, a municipality becomes liable to the injured party.

[96] The extent of this duty of care must, in my opinion, be determined in the context of weather and related conditions to which Canadian Citizens are, and can expect to be, exposed.

Any adult person familiar with Canadian weather knows, or should know, that walking on sidewalks, ramps, or streets can and may be dangerous, especially in winter and spring conditions. The statute does not impose strict liability on a municipality.

[97] Sand is employed by most Ontario municipalities to alleviate slippery walking conditions. It is, or should be, well known to sidewalk (including ramps) users that by the end of the winter and early spring sand has a tendency to accumulate on streets, sidewalks, and ramps. A pedestrian should and would be especially aware that there is a distinct possibility that sand would accumulate on sidewalks where they abut street surfaces.

[98] A municipality cannot be expected to continually remove accumulated sand from sidewalks and ramps particularly where it has received no complaints of unsafe conditions. Where a municipality is, or should be, aware of unusual risks, it must act to minimize or eliminate those risks whether they result from weather conditions, design faults, damage, or other causes. In this case, there is no evidence that would warrant a finding that there was any unusual risk posed to the sidewalk users.

[99] A trip, slip, or fall on a sidewalk or ramp that is covered with sand, does not automatically warrant a finding that a municipality has failed to meet its statutory duty to keep them in repair. A municipality cannot be expected to eliminate each and every condition that might possibly contribute to the possibility of someone slipping, tripping, or falling. The streets, sidewalks and ramps must be maintained and kept in a state of repair that will ensure they are safe for use by pedestrians. Pedestrians too must also make reasonable use of them. It is common knowledge that sand can reduce friction (where ice is not involved). Mrs. Cole was well aware of such a risk. However, unfortunately, on March 23, 1995 she ignored this risk.

[100] A sloped street, sidewalk, or ramp with accumulated sand, regardless of the degree of slope, calls for vigilance on the part of a pedestrian. In short, a pedestrian traversing a sloped ramp covered or partly covered with sand must look where he/she is going.

[101] The statutory duty imposed on a municipality has been interpreted by many courts as being a reasonable one having regard to the character and location of the street or sidewalk. A municipality must provide streets, sidewalks and ramps that are reasonably safe for travel. (See *McCready v. Brant* [1939], 3 D.L.R. 358).

[102] In the circumstances of this case, it would be unreasonable to find that the Defendant was tardy in failing to clean the accumulated sand from the ramp since it had no notice whatsoever that there was anything unusual about the ramp.

[103] It is very significant that Mrs. Cole was the only one to have fallen on the ramp and that there were no other complaints about the ramp. The evidence was that the weather conditions in effect on March 23, 1995 had persisted for some time. Mrs. Cole was not a stranger to the ramp.

[104] Even if it could be successfully argued (and in my opinion, it cannot) that the slope of the ramp was so steep as to constitute either an unusual risk, a dangerous situation, or negligence,

Mrs. Cole's conduct has to be examined closely. The ramp and its slope were well known to her. She had on earlier occasions avoided using it. Therefore, even if the Defendant was negligent and/or failed to meet its statutory duty, this particular slip and fall was the result of Mrs. Cole's own negligence. I find that she was effectively 100% responsible for her fall and the injuries that resulted from it and that the Defendant was not negligent.

[105] In my opinion, the evidence falls short of a finding that the fall was a result of Mrs. Cole's pre-existing physical problems or injuries. Her fall, as I have found, was the result of lack of care and attention on her part.

[106] I accept and adopt the following statement from the decision of MacFarland J. in *Stojadinov v. Hamilton (City)*, [1988] O.J. No. 2038 at p. 5:

The duty on the municipality is to keep the sidewalks in repair which is to say in such a condition that a person using ordinary care for his or her own safety can pass along it in safety. In my view it would be requiring the impossible of a municipality to require that it maintain all its sidewalks in perfect level. As has been said in these cases over the years, it does not follow because an accident happens, that a sidewalk is necessarily in a state of non-repair.

[107] In conclusion, therefore, I find that the Plaintiffs have failed to persuade me on a balance of probabilities that the Defendant failed to meet the statutory duty imposed on it by the *Municipal Act* and, as well, I find that they have failed to satisfy me that the ramp was negligently designed and/or constructed. I make these findings in light of the following admonition of the late Sopinka J. in *Snell v. Farrell*, 72 D.L.R. (4th) 289, (S.C.C.):

I am of opinion that the dissatisfaction with the traditional approach to causation stems to a large extent from its too rigid application by the courts in many cases. Causation need not be determined by scientific precision. It is, as stated by Lord Salmon in *Alphacell Ltd. v. Woodward*, [1972] 2 All E.R. 475 (H.L.) at p. 490, "...essentially a practical question of fact which can best be answered by ordinary common sense rather than abstract metaphysical theory." Furthermore, as I observed earlier, the allocation of the burden of proof is not immutable. Both the burden and the standard of proof are flexible concepts. In *Blatch v. Archer* (1774), 1 Cowp. 63 at p. 65, 98 E.R. 969 at p. 970, Lord Mansfield stated: "It is certainly a maxim that all evidence is to be weighed according to the proof which it was in the power of one side to have produced, and in the power of the other to have contradicted". ...

[108] This action, therefore, is dismissed.

Damages:

[109] Notwithstanding that I have found in favour of the Defendant, I should and will deal with an assessment of damages since I heard very detailed evidence and submissions regarding them.

[110] The parties have agreed that the amount of out-of-pocket, or special damages, should be assessed at \$4,102.33. Had I found for the Plaintiffs on liability, I would have allowed interest at the rate specified in the *Courts of Justice Act* on this amount from the date this proceeding was commenced.

[111] The parties further agreed that the subrogated OHIP claim should be assessed at \$63,809.55 for past expenses and \$9,291.74 for the cost of the future knee surgery if elected. I find these amounts to be reasonable and, again, had I found for the Plaintiffs, I would have awarded damages in those amounts. I do not recall whether the amount of \$63,809.55 includes interest. There is no reason not to award interest on the same basis as with respect to the out-of-pocket expense claim if the aforesaid amount does not include interest.

[112] I mentioned earlier that the parties were not significantly apart in their submissions regarding the amount of general damages. Had I found liability on the Defendant's part, I would have assessed the general damages at \$75,000.00.

[113] Finally, I would have assessed the *Family Law Act* claim of Maurice Cole at \$15,000.00.

Costs:

[114] In the event that the parties are not, within thirty (30) days from the date of delivery of these Reasons for Decision, able to conclude an agreement on legal costs, they may submit brief written argument to me.

Power J.

Released: February 21, 2003

PEMBROKE COURT FILE NO.: 928/75

DATE: 2003/02/21

ONTARIO

SUPERIOR COURT OF JUSTICE

B E T W E E N:

MARLENE COLE and MAURICE COLE

Plaintiffs

- and -

THE CORPORATION OF THE TOWN OF DEEP
RIVER

Defendant

REASONS FOR DECISION

Power J.

Released: February 21, 2003